1/22/2026
REVISED New Policy

OPR: WVOT Information Services

COMPLIANCE WITH THIS POLICY IS MANDATORY

Publications are available online at:
https://sites.google.com/wv.gov/othub/policy-governance/ot-policies

Questions and change recommendations related to this publication shall be directed to this publication's Office of Primary Responsibility (OPR). This policy shall be reviewed every two years to ensure continued alignment with current legal, operational, and strategic requirements. Revisions will be undertaken as necessary.

SUMMARY OF VERSIONS AND CHANGES

This is a new policy with no previous version.

Version	Date	Revision Description
Original	1/22/2026	Base Document

1. PURPOSE

1.1. The purpose of this policy is to establish standardized guidelines and procedures for creating, reviewing, approving, and managing MOUs within an organization. It ensures that all MOUs:

1.1.1. Align with the organization's goals, legal requirements, and operational standards.

1.1.2. Clearly define the roles, responsibilities, and expectations of all parties involved.

1.1.3. Are subject to appropriate oversight and authorization before execution.

1.1.4. Are documented and stored properly in an accessible manner/format for future reference and accountability

2. SCOPE

2.1. This policy applies to all departments (including agencies, boards, authorities, and commissions) within the Executive Branch of WV State Government. It also applies to any exempt agencies that receive any support by WVOT.

2.2. Where policies in place provide less restrictions or security than this policy, those policies are superseded by this policy. In instances where existing state and federal laws, regulations, and policies are more restrictive, the more restrictive provisions will prevail.

3. POLICY

3.1. All MOUs must be:

3.1.1. Be drafted using WVOT's standard MOU template (unless an exception is granted)

3.1.2. Be reviewed by Legal Services for legal sufficiency and compliance with applicable laws, regulations, and policies

3.1.3. Be approved and signed by individuals with appropriate authority

3.1.4. Be submitted to and maintained in the central administrative repository

3.1.5. Are subject to review every two years starting July 1st for compliance and continued relevance unless otherwise an earlier review is needed

4. PROCEDURES

4.1. Initiation

4.1.1. The originating department (e.g., WVOT) is responsible for initiating the MOU process.

4.1.2. Early consultation with Legal Services and Compliance is required before drafting.

4.2. Drafting

4.2.1. Use the official MOU template provided by WVOT, unless an alternative is pre-approved.

4.2.2. Clearly define the purpose, scope, roles and responsibilities, deliverables, timelines, funding arrangements (if applicable), 24x7 Applications and Sites, IRS 1075 requirements and key contacts.

4.2.3. All MOUs between WVOT and customer agencies must specify the agreed level of support. The following service tiers are available:

4.2.3.1. Full Service

4.2.3.1.1. WVOT provides comprehensive IT support, including infrastructure, application hosting, help desk, cybersecurity, network management, licensing and ongoing maintenance.

4.2.3.1.2. Agencies under this level receive support and centralized service management

4.2.3.1.3. Detailed service catalog will be referenced in MOU

4.2.3.2. Select Service

4.2.3.2.1. A Separation Agreement will be required when terminating the full service agreement MOU between the WVOT and the agency

4.2.3.2.2. The agreement will list what services WVOT delivers with the agency

4.2.3.3. Not Supported

4.2.3.3.1. The agency does not receive IT support under a MOU

4.2.3.3.2. The agency is fully responsible for managing its own IT infrastructure, support, and compliance

4.2.3.3.3. A Separation Agreement is required if this is a change from a previously supported arrangement with WVOT

4.2.4. Changes in Support Level

4.2.4.1. Requests to change the level of IT support—such as transitioning from Full Service to Select Service, or opting for Not Supported—must be submitted in writing. Any deviations from the standard MOU, whether initiated by the agency or WVOT, require mutual agreement. All changes must be documented through an addendum to the existing MOU or, if applicable, through a formal Separation Agreement.

4.2.4.2. Transition plans, timelines, and associated responsibilities will be outlined and mutually agreed upon

4.2.4.3. Separation Agreements

4.2.4.3.1. If a department or agency no longer wishes to receive services under an existing MOU with the WVOT, a Separation Agreement must be completed. This document outlines the terms and timeline for ending the MOU, including notice requirements, transition of services, data handling, and final responsibilities. It ensures a smooth and coordinated end to the agreement and protects both parties during the transition.

4.2.5. Review and Approval

4.2.5.1. All draft MOUs must be submitted to Legal Services for review to ensure legal sufficiency and compliance prior to execution.

4.2.5.2. Final MOUs must be approved by designated authority levels (e.g., Executive Director, Department Head, Legal Counsel).

4.2.6. Execution

4.2.6.1. MOUs must be signed by individuals by WVOT and the agency's appropriate signing authority.

4.2.7. Monitoring, Review and Renewal

4.2.7.1. Both WVOT and the Department/Agency share responsibility for monitoring compliance with the terms and conditions outlined in the MOU.

4.2.7.2. All MOUs are subject to review every two years starting July 1st in coordination with the participating agency. Each MOU must be updated as necessary and formally executed by the designated signatory authorities from WVOT and the participating agency or as otherwise stipulated in the agreement.

4.2.7.3. In the event that a designated signatory is no longer employed, the MOU must be revised to include the appropriate new authorized signatory. Remaining valid signatories must also reaffirm the agreement through their signatures.

4.2.7.4. Addendums, renewals, or terminations must follow the review process.

4.2.8. Recordkeeping

4.2.8.1. All executed MOUs must be stored in the designated document management system with proper indexing to facilitate retrieval, auditing, and reporting. Retention must comply with state records management policies. In addition, ITIPS (Information Technology Investment Portfolio System) will be used to track the creation, review, renewal, amendment, and termination of MOUs to support, reporting, and lifecycle management.

4.3. ROLES AND RESPONSIBILITIES

Entity	Responsibility
WVOT	● Initiates and drafts the MOU using the standard template. ● Coordinates with Legal Services and Compliance for initial review. ● Defines and documents the level of IT support to be provided (Full, Select, or None). ● Facilitates the review and approval process. ● Maintains a central repository of executed MOUs. ● Coordinates MOU reviews, renewals, and amendments. ● Leads and documents any changes in service level, including Separation Agreements. ● Communicates changes in policies or support levels to affected agencies.
Legal Services	● Reviews MOUs for legal sufficiency and compliance with applicable laws/regulations

Approving Officials	● Approve and sign MOUs based on their delegated authority
Operations Analyst	● Archives executed MOUs and monitors expiration and renewal dates ● Enters and updates records in ITIPS for creation, review/renewal/changes or termination of MOU agreements
Department/Agency	● Collaborates with WVOT to define MOU scope and expectations ● Reviews and provides input on draft MOUs ● Secures internal approvals from appropriate authorities ● Fulfills responsibilities and timelines outlined in the MOU ● Participates in MOU reviews ● Requests support-level changes in writing and coordinates transitions ● Ensures internal compliance with MOU terms ● Signs Separation Agreement if discontinuing WVOT services

5. POLICY SPECIFIC DEFINITIONS

5.1. Internal Revenue Service (IRS) Publication 1075 (IRS 1075) - guidelines and requirements for ensuring the confidentiality, integrity, and security of Federal Tax Information (FTI). It establishes the standards that federal, state, and local agencies must follow when accessing, storing, processing, or transmitting FTI. The publication outlines physical, administrative, and technical safeguards to prevent unauthorized access or disclosure and ensure compliance with the Internal Revenue Code (IRC) §6103.

5.2. Information Technology Investment Portfolio System (ITIPS) - the West Virginia Office of Technology's centralized platform for managing, tracking, and reporting information technology investments across state agencies. It also serves as the official system of record for WVOT to document Data Sharing Agreements.

5.3. Memorandum of Understanding (MOU) - a formal agreement that outlines the intent of two or more parties to collaborate and specifies the roles, responsibilities, and expectations of each party.

5.4. Renewal - process of re-evaluating, updating, and formally re-authorizing an existing Memorandum of Understanding (MOU) to ensure it remains legally sufficient, operationally relevant, and aligned with current organizational requirements. Renewals occur at least biennially and require signatures from designated signatory authorities to remain in effect.

5.5. Review - structured process of assessing an active Memorandum of Understanding (MOU) to determine its ongoing relevance, accuracy, legal sufficiency, and operational effectiveness. MOUs are subject to review every two years starting July 1st, or earlier if required, in coordination with participating agencies. The review may result in updates, renewals, amendments, or terminations.

5.6. Select Service Agreement - a type of Memorandum of Understanding (MOU) in which an agency receives a defined set of information technology (IT) services from the WVOT, rather than full IT support. Under this arrangement, the scope of services is limited and specifically outlined in the MOU. The agency retains responsibility for managing any IT functions not covered under the agreement.

5.7. Separation Agreement - a formal document that outlines the mutually agreed-upon terms and conditions for ending or discontinuing services provided under an existing Memorandum of Understanding (MOU). It is used when either party - typically an agency or WVOT - elects to terminate the MOU, either partially or in full.

The Separation Agreement includes:

- Services WVOT will no longer provide the separating agency
- The date WVOT will disjoin with the separating agency
- The Separation Agreement will state the agency is responsible for their own IT support once the agreement goes into effect

- The agreement will also state if WVOT Technical Support the agency will be billed the technical support rate that is provided in the WVOT Service Catalog.
- The agreement must be signed by both the WVOT and the separating agency's Designated Approval Authority

5.8. West Virginia Office of Technology (WVOT) - the state agency responsible for providing centralized information technology services, infrastructure, and governance to support the operations and security of executive branch agencies.

6. RELEVANT MATERIALS AND DOCUMENTS

6.1. Internal Revenue Service (IRS) Publication 1075

6.2. WVOT Publications Central Library Website https://sites.google.com/wv.gov/othub/policy-governance/ot-policies